

VCU325888 Salazar Gonzalez, Guadalupe vs. AEGIS GENERAL INSURANCE AGENCY

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-06-25

Motion: Defendant's Motion to Strike Punitive Damages

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: 42927d1979f96b71426db5bae540a9479bdfa7655ea261e3e154bc4d0d96801e

Re: Salazar Gonzalez, Guadalupe vs. AEGIS GENERAL INSURANCE AGENCY

Case No.: VCU325888

Date: June 25, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Defendant's Motion to Strike Punitive Damages

Tentative Ruling: To grant the motion with leave to amend; Plaintiff shall have ten (10) days from this hearing date to file an amended complaint as to allegations related to punitive damages.

Facts

In this amended complaint, Plaintiff alleges Plaintiff purchased a homeowner's insurance policy from Defendants, Policy Number 0203424776 ("the Policy"), which insured the Property owned and occupied by Plaintiff on April 13, 2024 and in consideration for the premiums paid by Plaintiff to Defendants, Defendants issued Plaintiff the Policy and continued it in effect. (FAC ¶9.)

On April 13, 2024, Plaintiff's home suffered strong winds which damaged Plaintiff's property, including Plaintiff's roof causing water intrusion and subsequent damage to the interior of the insured property. (FAC ¶10.)

Upon notice or discovery of the loss, Plaintiff timely reported it to Defendants and made a claim on the Policy ("Claim"). (FAC ¶11.) Defendants acknowledged receipt of the Claim and assigned claim number 1070000 with a April 13, 2024 date of loss. (FAC ¶11.) Defendants assigned an adjuster (or multiple adjusters) to handle the Claim and communicate with Plaintiff and their representatives concerning the Claim. (FAC ¶11.)

On January 24, 2025, Defendants informed Plaintiff in writing of Defendants' coverage determination wherein Defendant denied the claim based on wear, tear, deterioration, inherent vice or latent defect as well as long-term water leakage,

cracking, and faulty, inadequate or defective construction, workmanship, or maintenance. (FAC ¶13.)

Relevant here, Plaintiff's second cause of action for tortious bad faith alleges the following:

26. There are no good faith disputes by Defendants concerning coverage for Plaintiff's claim under the Policy or the nature and scope of the loss suffered and incurred by Plaintiff for which coverage is provided by the Policy. Defendants willfully acted in bad faith by making their coverage determination and later refusing to depart from it as requested by Plaintiff, and by rejecting Plaintiff's demand for full payment of the total loss claimed. Defendants also failed or refused to negotiate with Plaintiff in a good faith effort to resolve the coverage dispute without litigation, despite Plaintiff's efforts to do so.

27. Defendants willfully breached the duty of good faith and fair dealings by intentionally and unlawfully and unreasonably and unfairly failing and refusing to:

a. Conduct a full and complete and competent investigation of the Claim as required by the terms of the Policy and California law;

b. Conduct a full and complete and competent inspection of the Property in connection with the Claim as required by the terms of the Policy;

c. Provide full coverage for Plaintiff' Claim of loss to the Property as required by the terms of the Policy;

d. Defendants failed to pay Plaintiff any amount for repairs and mitigation despite the facts that plaintiff's full amount of the loss to the Property is estimated to be a grand total of \$ 125,019.79 (including the mitigation invoice \$ 34,676.35 and the estimated costs of repairs \$ 90,343.44).

e. Defendants failed to Restore the Property to its pre-existing condition prior to the date of loss on April 13, 2024, which has forced Plaintiff to continue living on the Property in its state of disrepair because they lack resources to pay for the repairs to the Property, as Defendants knew.

...

30. Plaintiff is also entitled to punitive damages against each of the Defendants pursuant to Civil Code § 3294, because each of the Defendants has acted willfully and in bad faith, and is, therefore, guilty of oppression, fraud, and malice based on their tortious conduct.

31. Specifically, Defendant's claims investigators and adjusters intentionally delayed its investigation of the claim by failing to conclude its investigation within 40 days as required by California insurance regulations set forth Cal. Code Regs. Tit. 10, § 2695.7 - Standards for Prompt, Fair and Equitable Settlements. Likewise, Defendant and its adjusters and investigators further failed to provide anything more than pretextual reasons to continue its investigation. To that end, Defendant and its agents intentionally requested additional inspections of the insured's wind damaged roof in which Defendant refused to pay for the cost to remove and reinstall the roof tarp on multiple occasions. Despite opening coverage for the claim, Defendant and its agents intentionally caused harm to plaintiff by purposely requested multiple inspections and intentionally delayed the claim in violation of California insurance regulations in order to force Plaintiff into incurring substantial additional unnecessary costs (removing/reinstalling roof tarps for multiple insurance inspections) and deterring the insured from pursuing a valid claim." (FAC ¶¶26, 27, 30, 31.)

Defendants seek to strike the claims for punitive damages, arguing that Plaintiff has failed to sufficiently allege facts in support of punitive damages for bad faith and that the amended complaint fails to identify a managing agent or ratifying

individual as to the allegations in support of punitive damages.

No opposition appears to have been filed.

Authority and Analysis

Any party may file a timely notice of a motion to strike the whole or any part of a pleading. (Code Civ. Proc., § 435, subd. (b).) The motion may seek to strike any "irrelevant, false or improper matter inserted in any pleading" or any part of the pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.)

California's punitive damages statute, Civil Code section 3294, provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (§3294, subd. (a).)

Civil Code section 3294, subdivision (c) defines the terms "malice," "oppression," and "fraud" for purposes of punitive damages liability: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

In order to support a prayer for exemplary damages, a plaintiff must allege that the defendant did more than act in bad faith. "The conduct required to award punitive damages for the tortious breach of contract ... is of a different dimension." (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1286.) "Such damages are accessible only upon a showing that the defendant 'act[ed] with the intent to vex, injure, or annoy.' " (Id., citing Neal v. Farmers Ins. Exchange (1978) 21 Cal.3d 910, 922.)

"Punitive damages for failure to pay or properly administer an insurance claim are ordinarily ... based on 'malice' or 'oppression,' [which] are defined in Civil Code section 3294 as involving 'despicable conduct'" (Id.) In the case of malice, such conduct " 'is carried on by the defendant with a willful and conscious disregard of the rights or safety of others,' and as to oppression is 'conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.'" (Id., at 1286-1287.)

"It is notable that punitive damages have been assessed against insurance companies most commonly where a showing has been made of a continuous policy of nonpayment of claims." (Id., citing Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 329.)

With respect to employers, Civil Code section 3294 provides that "[a]n employer shall not be liable for [punitive damages], based upon acts of an employee ..., unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation."

Here, the allegations that Defendants failed to conduct a complete investigation provide full coverage, pay Plaintiff for repair damages, and failure to restore the Subject Property, allegations of intentional delay beyond 40 days, the "fail[ure] to provide anything more than pretextual reasons to continue its investigation" and "intentionally requested additional inspections of the insured's wind damaged roof in which Defendant refused to pay for the cost to remove and reinstall the roof tarp on multiple

occasions" are insufficient as to the standards set forth above. Plaintiff has failed to allege anything more than the denial of a claim. Additionally, Plaintiff has failed to satisfy the requirement under Civil Code section 3294.

Therefore, the Court grants the motion to strike with leave to amend. Plaintiff shall have ten (10) days to file an amended complaint as to the allegations in support of punitive damages.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.